the said grounds and buildings up to the several dates therein specified.

I will thank you to verify the correctness of the items specified in the enclosed receipt by comparison with any payments made in Japan of a similar nature.

I am, Sir,

Your obedient servant,

Hamilton Fish.

Enclosure:

Mr. Fish to Mr. Yano, April 14, 1874 with a copy of Mr. Yanos' receipt for rents, &c.

B. No. 60. Department of State,

Washington, July 29, 1874.

John A. Bingham, Esquire

&c. &c. &c.

FOREIGN Relations '74

Sir:

Referring to your despatch No. 78, in which you seek instructions upon the various questions arising out of the participation of citizens of the United States in the late Expedition against Formosa, and of the employment of an American vessel, I have to inform you that your proceedings to detach the citizens of the United States and the steamer New York from the Expedition are approved. You are referred to the instructions already given by this Department on this question. The act of June 22, 1860, affords ample authority to the Ministers of the

United States to issue writs and proclamations to prevent the citizens of the United States from enlisting in the military or Naval service of China or Japan, to make war upon any foreign power with whom the United States are at peace, or in insurrectionary movements, and, should a warning or proclamation prove ineffectual the Minister is authorized to resort to such force as may be within his reach belonging to the United States to accomplish the purpose.

It is believed by the Department that the powers conferred upon the Minister of the United States by this act, will prove sufficient in these cases.

The Representatives of the Government will take every means to prevent any violation of these provisions of law, and it is believed that in most instances no actual resort to force will be required.

Your response to the representation of Colonel Le Gendre that the act of 1860 was unconstitutional is approved. No officer of the Government is made a judge of the constitutionality of an act of Congress; and all acts are to be deemed constitutional until the question be legally decided otherwise.

This Department has been officially informed by the Secretary of War that Mr. Wasson who was attached to the Expedition against Formosa above referred to

has not been in the service of the United States since July 1, 1872.

I am, Sir,

Your obedient servant,

Hamilton Fish.

No. 61. Department of State,
Washington, August 6, 1874.

John W. Bingham, Esquire
&c. &c. &c.

Circular enclosing Revised Regulations of U. S. Centennial Commission. See Instr. Argent. Reps. Vol. 16 p. 72.

C. No. 62. Department of State,
Washington, August 15, 1874.

John W. Bingham, Esquire
&c. &c. &c.

Sir:

I transmit herewith a copy of the printed personal instructions to the Diplomatic Agents of the United States in foreign countries, which have just been revised and amended in several respects.

Your attention is especially invited to the changes which have been made from the last preceding edition.

You are requested in accordance with a provision in XXXVIII, to designate, at your earliest convenience, two newspapers

published in the United States, which you desire to have sent to the Legation for the calender year beginning January 1, 1875.

I am, Sir,

Your obedient servant,

Hamilton Fish.

L. No. 63. Department of State,
Washington, August 18, 1874.

John W. Bingham, Esquire
&c. &c. &c.

Sir:

Your despatches numbered 96, 97, 98, 99, 100, 101 and 102 have been received.

I am, Sir,

Your obedient servant,

Hamilton Fish.

A. No. 64. Department of State,
Washington, August 18, 1874.

John W. Bingham, Esquire
&c. &c. &c.

Sir:

Your No. 102, of the date of July 17, has been received.

It refers to a communication between yourself and Sir Henry Parkes, Her Britannic Majesty's Minister, in which he refers to a report of proceedings in Congress in which a member of the House of Representatives was reported to have